

25STCV35243 25STCV35243

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV35243 Hearing Date: August 18, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV35243

KAREN

EDWARDS, AN INDIVIDUAL vs LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION
AUTHORITY, A PUBLIC ENTITY, et al.

August

18, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF KAREN EDWARDS'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES, SET ONE.

RULING:

The Court continues the Motion hearing to October 2, 2026, at 8:30 a.m., in Department 311, for further meeting and conferring.

Plaintiff shall serve and file an up-to-date Separate Statement narrowing the issues, with a Reply, at least seven days before the continued hearing date. Defendant may serve and file a supplemental Opposition at least 10 days before that date.

Plaintiff to give notice.

I.

BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered on August 17, 2026.

On July 22, 2026, KAREN EDWARDS (Plaintiff) filed the Motion to Compel Further Responses to Special Interrogatories, on grounds that they are not code-compliant—primarily due to not setting forth efforts made to obtain information. Plaintiff additionally requests \$3,210.00 in sanctions against Defendant and counsel.

LOS ANGELES COUNTY

METROPOLITAN TRANSPORTATION AUTHORITY (Defendant) advocates denial, based on arguments such as that requests are overbroad, and assume that the alleged incident occurred, which Defendant denies. Defendant also requests \$690.00 as sanctions against Plaintiff and counsel.

II.

LEGAL STANDARD

If interrogatory responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (*Best Products, Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181,

1190.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Interrogatory responses

must be (1) the information sought, (2) an exercise of a valid option to produce writings, or (3) an objection. (Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 293.) An interrogatory response must be as complete and straightforward as reasonably available information permits. (Code Civ. Proc., § 2030.220.) A response must “represent the interrogated party’s present best and complete answer.” (Fuss v. Superior Court (1969) 273 Cal.App.2d 807, 816.) If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 406; Regency Health Services, Inc. v. Superior Court (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.) “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. [Citation.] Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783. Accord, Field v. U.S. Bank Nat’l Assn. (2022) 79 Cal.App.5th 703, 708.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200

Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.) Even where satisfactory responses have been served after the filing of motions to compel, courts may award sanctions. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion]; Cal. Rules of Court, rule 3.1348(a).)

III.

ANALYSIS

Plaintiff summarizes the matter, as follows:

Metro

asks the Court to deny the Motion 'in its entirety,' yet promises the relief Plaintiff moved to compel. It admits that SROG Nos. 7, 13, 16, 23, 24, 26, and 31 contain a statement about an alleged investigation of Plaintiff's counsel that 'is not a proper response to the interrogatories as posed' and says it will omit that statement. (Opp. at p. 6.) Metro also says it will identify the bus operator by name and badge number in a supplemental response and that SROG No. 35 'will clarify' the camera equipment and retention theory. (Opp. at pp. 7, 9.) No verified supplemental responses are attached.

These

are substantive corrections. SROG No. 26 directly sought the operator's identity; SROGs 4, 29, and 30 seek that operator's training; No. 27 seeks Metro's PMK regarding training; No. 35 asks whether the bus had cameras; and SROGs 7, 13, 16, 23, 24, and 31 seek incident facts, witnesses, contentions, or reports. Metro's first identification of Juarez Ramirez and its promise to correct those answers confirm the original responses were incomplete.

Metro

also says it is prepared to identify prior bus-door claims associated with a particular bus and/or Route 108 for a reasonable prior period, subject to a

protective order. (Opp. at p. 9.) That undercuts its blanket refusal to answer SROG Nos. 11, 12, 25, and 28. Rule 3.1348(a) permits sanctions even when discovery is provided after a motion is filed; post-motion promises do not defeat the Motion.

(Reply, p. 3.)

Defendant provides this opposing summary:

1. Several

of Metro's original Special Interrogatory responses were complete and substantive responses that directly disclosed Metro's defense position, including comprehensive disclosure of Metro's operator training protocol for bus door operations (SROG No. 3), an admission that Metro buses are generally equipped with DVR/SmartDrive camera systems (SROG No. 35), and accurate "None" responses to requests for statements and reports that were never made because the alleged incident was never reported within 30 days of its alleged occurrence;

2. The

absence of DVR/SmartDrive footage is fully explained by Metro's 30-day retention policy on onboard bus videos, a fact Defense counsel communicated directly to Plaintiff's counsel by telephone during the meet-and-confer, and not by any discovery failure or evasion;

3. Metro's

objections to interrogatories seeking fleet-wide maintenance records, inspection histories, dangerous-condition warnings, and five-year prior incident data were substantially justified by application of the Government Claims Act: Plaintiff's Government Claim and Complaint allege only operator negligence in closing bus doors, they do not allege negligent maintenance, negligent inspection, or dangerous condition of public property, and thus cannot support discovery tracking those unpled theories; and

4. Plaintiff's

request for \$9,630 in monetary sanctions across three parallel motions presenting substantially identical issues lacks substantial justification and is excessive and duplicative.

(Opposition, pp. 2-3.)

Here, considering the large percentage of grossly overbroad discovery requests going well being the alleged incident involving a bus door, and encompassing years of an entire system of buses, the Court is inclined to deny the Motion as to Special Interrogatories, numbers 1-3, 5-6, 11, 25, 27, and 28.

“When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.) Although some “fishing expeditions” are permissible in discovery, there are limits, such as to insufficiently identified information, and undue burden of providing information as compared to the value of the information. (Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 224–225.) For example, discovery time spans may be overly broad. (Cf. Lopez v. Watchtower Bible & Tract Soc’y of New York, Inc. (2016) 246 Cal.App.4th 566, 593, 594 [“a 27–year post-incident time period for requested documents is unusual.... Absent this tolling period or an equivalent circumstance, it is unlikely that a similarly time-expansive document production would be upheld.”].)

Additionally, given an unusually large number of Special Interrogatories assuming facts not in evidence, and ambiguously failing to identify the bus and driver alleged to constitute such evidence, the Court determines that the Responses are properly framed as answers that deny the alleged incident occurred, based upon the absence of such records, and without Defendant having to search further for “no records” already determined, as to Special Interrogatories 4, 7-10, 12, 13, 15, 16, 23-24, 26, and 29-35.

Regarding discovery objections based upon questions assuming facts not in evidence, while they do not apply to written discovery, nevertheless “an answer may be framed which avoids the pitfalls, if any, inherent in the form of the question.” (W. Pico Furniture Co. of Los Angeles v. Superior Court (1961) 56 Cal.2d 407, 420–421.)

Proof of a negative is relevant and admissible if it tends to prove the nonexistence of a material

fact by one in a position to observe whether the fact occurred. (In re Quentin H. (2014) 230 Cal.App.4th 608, 617.)

And ambiguity objections

as to discovery are sustained if requests are unintelligible. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.)

While Plaintiff often

offers to narrow and to clarify Special Interrogatories, the Court is not obligated to rewrite each Special Interrogatory. (See, e.g., Separate Statement, filed 7/22/26, 22:14-16 (“Plaintiff is agreeable to limit this request to Metro bus that on the day of the incident was following on route #108 (bus 6827).”).) Ideally, the Special Interrogatories should have been written with such limits.

Motions to compel further

responses to interrogatories may be denied as to item numbers that are partially overbroad, and the Court has no obligation to modify them to make them entirely proper. (Deaile v. Gen.

Tele. Co. of Cal. (1974) 40 Cal.App.3d 841, 850-853; Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 789, superseded by statute on another ground as

stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.)

Considering the above

analysis, and some opposing concessions about supplementing responses, the Court finds that the parties should further meet and confer, based upon guidance provided herein. “A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion.” (Stewart v. Colonial W. Agency (2001) 87 Cal.App.4th 1006, 1016. Accord, Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-1294. See also Code Civ. Proc., § 2016.040, subd. (a) (“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”).)

IV.

CONCLUSION

Accordingly, the Court continues the Motion hearing, for narrowed Special Interrogatories, and meeting and conferring.

Given some substantially justified arguments coming from each side, the Court is inclined to deny both sanctions requests.

If the Motion is informally resolved before the continued hearing date, Plaintiff shall file a notice of taking the Motion off calendar.